



POLICE DEPARTMENT

January 2, 2026

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In the Matter of the Charges and Specifications	:
- against -	:
Police Officer Serge Jean	:
Tax Registry No. 950628	:
1 st Precinct Detective Squad	:

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Case No.
C-034660

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Timothy Marsh, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent:

Stuart London, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Serge Jean, while on duty and assigned to the 1st Precinct, on or about June 2, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Jean failed to take police action when he failed to assist officers attempting to place individuals known to the Department, who were actively resisting arrest, into custody.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 2, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department called Sergeant Justin Currao as a witness and presented video footage of the incident as evidence. Respondent called Police Officer Frank Jilling and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty and recommend the forfeiture of 20 vacation days.

ANALYSIS

On June 2, 2024, officers from the New York City Department of Parks and Recreation ("Parks Department") were conducting an operation addressing unlicensed food vendors in the vicinity of the Staten Island Ferry Terminal and Battery Park.¹ Respondent and his partner, Police Officer Frank Jilling were present to provide assistance. At approximately 1430 hours, Parks Department officers attempted to arrest a woman and her 14-year-old daughter², who were actively resisting. Respondent and Police Officer Jilling were called to help; however, the

¹ The tribunal takes judicial notice that New York City Administrative Code § 17-307 makes it unlawful for any individual to act as a food vendor without having first obtained a license.

² During trial, the juvenile was referred to on the video in evidence, and by Respondent in his testimony, as a "12-year-old girl;" however in the course of the IAB investigation, it was revealed that she was actually 14 years old.

juvenile escaped from custody. The facts in this matter are largely undisputed, but the parties disagree about whether Respondent provided sufficient police assistance to the other officers on the scene.

The incident was captured on body-worn camera and New York City Department of Transportation (“DOT”) surveillance footage. The recordings show [REDACTED] (“M.M.”) arguing with Parks Department employees, including Parks Officer Kevin Errico and Parks Sergeant Jeremy Davis, who were accusing her of selling fruit without a vendor’s license while confiscating her cart and its contents. M.M., her 14-year-old daughter, [REDACTED] (“A.M.”)³ and a third unidentified woman, who was wearing a black shirt, attempted to pull the fruit cart from Parks Officer Errico and run away with it. During the struggle for control of the cart, Parks Officer Errico and the unidentified woman shoved each other. After that, A.M. ran up to Parks Officer Errico and struck his arm. Respondent and Police Officer Jilling were not present during this altercation; they arrived after Parks Department employees asked for help over the radio. (Tr. 54-55, 79-80; Dept. Ex. 1A, *DOT State Street Surveillance Camera*, 03:42-04:13; Dept. Ex. 1B, *DOT 169 White Street Surveillance Camera* at 03:41-04:15; Dept. Ex. 1C, *DOT 171 White Street Surveillance Camera* at 04:05-04:15)

Police Officer Jilling got to the scene ahead of Respondent and attempted to handcuff A.M. She resisted by pulling her arms away, twisting her body, and trying to pry his fingers open. While this was happening, M.M. grabbed her arm and tried to pull her away. After approximately two minutes, Police Officer Jilling succeeded in placing one of A.M.’s wrists into his handcuffs and Parks Sergeant Davis pulled her free from M.M. (Tr. 56-59; Dept. Ex. 2, *Police Officer Jilling body-worn camera* at 27:33-30:00)

³ Neither M.M. [REDACTED] nor her minor daughter, [REDACTED] appeared before the tribunal, and they will be referred to by their initials throughout this decision.

Respondent arrived as M.M. linked arms with A.M. He stepped away to speak to a witness, who told him that the women wanted to retrieve money from inside of the cart. Several other bystanders began to swarm around where Police Officer Jilling was restraining A.M. Members of the crowd were holding up cellphones, yelling, and getting within a couple of feet of them. A man in a purple shirt approached Respondent and loudly objected to the arrest because of A.M.'s age. At one point, the man stepped right next to Police Officer Jilling and A.M. Respondent then walked several feet away and called for back-up over the radio. (Dept. Ex. 3, *Respondent's body-worn camera* at 27:17-29:22)

When Respondent returned to the scene, Parks Sergeant Davis, who was holding a struggling A.M. by himself, told Respondent, "I got this." At the same time, the man in the purple shirt began to pull A.M. away from Parks Sergeant Davis. Respondent said to the man "Don't do that," then grabbed his hand and he released his grip. The man in the purple shirt again stepped within approximately two feet of Parks Sergeant Davis and continued to yell and point while Respondent stood behind him. The crowd pulled A.M. and Parks Sergeant Davis away from Respondent, eventually freeing her and causing Parks Sergeant Davis to fall backwards onto the ground. Respondent then walked away and made another radio transmission before walking back to Police Officer Jilling, Parks Officer Errico, and another Parks Department Officer, who were still attempting to place M.M. into handcuffs. When he reached them, Respondent yelled, "y'all put her in cuffs yet, what are you waiting for?" A third Parks Department Officer then rushed over and began to assist as Respondent walked away for a third time. He approached Parks Sergeant Davis, who was standing with two other Parks Department employees and told them, "Look, you can't always get [A.M.] back, but they're going to be here again, so don't worry about it." (Dept. Ex. 3 at 27:17-31:31)

M.M. was arrested for Obstructing Governmental Administration and later on that evening, A.M. surrendered to the 1st Precinct where a Juvenile Report was prepared by the Parks Department for Disorderly Conduct. (Tr. 29-30)

Sergeant Justin Currao of the Internal Affairs Bureau (“IAB”) took the stand and testified that in June 2024, he was working as an investigator when IAB received a routine notification regarding A.M.’s escape from custody. Sergeant Currao explained that while Respondent was initially considered a witness, he was ultimately investigated for failure to take police action after a review of the body-worn camera and security camera footage. (Tr. 15-17)

Sergeant Currao detailed that the body-worn camera footage showed that Parks Officer Errico pointed out A.M. to both Respondent and Officer Jilling and alleged that she had assaulted him. Sergeant Currao described the video footage which showed Officer Jilling approaching and grabbing hold of A.M., while Respondent stood behind him “watching.” (Tr. 18-19, 21-24)

Sergeant Currao observed that M.M. interfered as A.M. actively resisted. According to Sergeant Currao, in spite of this escalation, Respondent did not take any physical action to assist Officer Jilling. He asserted that Respondent did not physically or verbally engage with the bystanders, nor did he pursue A.M. after she fled. Sergeant Currao testified that although Respondent was standing approximately four to six feet away when Parks Sergeant Davis fell, he failed to assist him in any way. (Tr. 24-29)

Respondent testified that on the date in question, he and Police Officer Jilling were assisting Parks Department officers in a “joint op” targeting unlicensed food vendors. He detailed that the Parks Department officers were responsible for issuing summonses and that,

“We’re just there for security reasons [to] make sure nobody attacks them and nobody is hurt during the process.” (Tr. 78-79)

Respondent admitted that he was informed by Parks Officer Errico that A.M. had assaulted him. He averred that when he arrived, he observed a “little girl,” A.M., who was “standing there crying, afraid.” According to Respondent, Police Officer Jilling did not require his assistance with A.M. because there were “enough Parks agents with him,” so he turned his attention to the crowd. Respondent explained that he was “making sure nobody’s interfering with what’s going on.” He claimed that he did not need to physically remove any bystanders because the crowd never got closer than 10 to 15 feet from the officers. Respondent opined that this was the most valuable use of his time and recounted that, in addition to issuing commands to the members of the public, he made a transmission over the radio for assistance when the bystanders became agitated. (Tr. 79-85, 89-92) Respondent asserted that he stepped away to do so because, “the crowd was forming around me, so I moved away from the crowd for safety.” (Tr. 98)

Respondent remembered that Parks Sergeant Davis took A.M. from Police Officer Jilling and told them “I got her,” before walking away with her by himself. According to Respondent, he did not observe the crowd pull A.M. free or see Parks Sergeant Davis subsequently fall to the ground. He admitted that he heard later that A.M. had fled, but he did not see that occur until he reviewed the footage after the fact. Respondent recalled telling Parks Sergeant Davis, “We’re going to get her after.” (Tr. 96-101)

Respondent testified that he then walked over to ensure that M.M. was placed in handcuffs. He explained that he did not assist the other officers because they were already restraining her and it did not take long to get her under control. Respondent described this as the

end of the encounter and recalled that A.M. came to the precinct later, without the handcuffs, and turned herself in. (Tr. 85-88)

On cross-examination, Respondent agreed that because of the identification of A.M. as the alleged perpetrator of an assault, this was a “must arrest situation.” When asked whether A.M. was actively resisting or whether her mother was holding onto her, Respondent asserted that he could not recall, but later stated that M.M. “never really had [a] full grip” on A.M. He agreed that she nonetheless could have been arrested for Obstruction of Governmental Administration. (Tr. 91-96)

Police Officer Frank Jilling took the stand and recounted that when he went to assist Parks Officer Errico, a crowd of “maybe 50” people had gathered and he remembered one spectator yelling that A.M. was twelve years old. Because of her young age, Police Officer Jilling recalled being careful about the amount of force he used. He described getting one handcuff onto A.M.’s left wrist before Park Sergeant Davis offered to help. Police Officer Jilling recalled that after Park Sergeant Davis told him, “I got it,” he shifted his focus and began “working on the older woman.” (Tr. 57-59)

With respect to the M.M.’s interference with her daughter’s arrest, Police Officer Jilling acknowledged it was unusual and confirmed that he had to disentangle them. However, he contended that once they were separated, he did not have any difficulty placing M.M. under arrest. According to Police Officer Jilling, the scene was “very volatile,” and he was “really focused on the 12-year-old girl.” He also stated that he “believed” that while all of this was taking place, Respondent was “dealing with the crowd” and “was helping...maintain order.” (Tr. 58-60, 65, 72-73)

Police Officer Jilling testified that he “became aware after the fact” that members of the crowd had helped A.M. escape custody and that he did not know what Respondent was doing while Parks Sergeant Davis was struggling with her. He acknowledged that his handcuffs were never recovered. Finally, Police Officer Jilling conceded that Respondent did not assist with placing handcuffs on the women and agreed that Respondent had a duty to help the officers making those arrests. (Tr. 61, 69, 72-73)

Respondent stands charged with failing to assist Parks Department Officers and Police Officer Jilling while they attempted to arrest M.M. and A.M.

Patrol Guide 202-01, paragraph 9 requires NYPD officers to “render all necessary police service in assigned area and as otherwise directed.”

In this case, the parties agree that A.M. hit a Parks Officer and actively resisted being placed into custody. It is also undisputed that Respondent called for backup but did not physically assist Police Officer Jilling and the Parks Department officers with her arrest, or that of M.M. The question for the tribunal is whether Respondent was obligated to take further police action, in order to assist his colleagues. I find that he was.

Respondent testified in a self-serving manner, embellishing what he was doing in order to secure the scene. I found his proposed justification for his inaction was not persuasive. Respondent admitted that he did not physically attempt to place A.M. and M.M. into handcuffs. He contended that he took appropriate and vital police action by calling for further units and keeping the crowd away with his words and hand gestures. This was contradicted by his own body-worn camera footage that showed Respondent having conversations with bystanders while an angry crowd surrounded the other officers. In spite of his claim that members of the public got no closer than ten to fifteen feet away, Respondent’s body-worn camera recording revealed that

Respondent stood by as several people, including the man in the purple shirt, got within an arm's length of the officers attempting to subdue A.M. This is consistent with Police Officer Jilling's testimony that the situation was volatile and, aside from calling for help, he did not know what Respondent was doing to maintain order.

Respondent also denied seeing the crowd pull A.M. out of Parks Sergeant Davis's grasp and rush her away. However, his testimony was belied by his body-worn camera footage which showed that he was in a position to see this. The video also confirmed that Respondent did not pursue A. M. or even assist Parks Sergeant Davis to get to his feet. Finally, with regard to the arrest of M.M., Respondent's contention that Police Officer Jilling did not need assistance placing her into custody was directly contradicted by footage showing him asking the other officers in an incredulous tone, "y'all put her in cuffs yet, what are you waiting for?"

All in all, Respondent's lackadaisical attitude towards potential dangers and his refusal to physically assist his fellow officers, contributed to a situation in which a group of bystanders was able to insert themselves into the situation, overwhelm Parks Sergeant Davis, and help A.M. escape. Several times during the incident, Respondent walked away from his colleagues rather than trying to guide the crowd back to a safer distance. I reject Respondent's claim that his actions were motivated by safety concerns, when in fact he made everyone else less safe. Respondent made no effort to pursue A.M. and then told the Parks officers not to worry about it. Finally, rather than helping the other officers, he criticized them for taking too long to put M.M. into handcuffs. For the foregoing reasons, I find Respondent Guilty.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and

circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent was appointed to the Department on July 6, 2011; he has no prior disciplinary history. He has been found guilty of failing to take police action. The Department has recommended the forfeiture of twenty (20) vacation days, the presumptive penalty in the Matrix, for failure to take police action. (Matrix at p. 46) I agree with that recommendation.

In the instant matter, a review of the evidence, in particular Respondent's own body-worn camera footage, reveals a cavalier approach to the entire encounter, as well as his disturbing lack of concern for the safety of not only his partner, and the Parks Department Officers, but also for M.M and A.M., a 14-year-old girl, who was swept away in a crowd of strangers. His failure to do his job was so striking that an IAB investigator, who was conducting a review of video footage of the entire incident, was concerned enough to initiate an investigation into it.

In sum, there is no justification for Respondent's casual approach to this assignment. At the time of this incident, Respondent had worked for the Department for 13 years, including on previous joint operations with other agencies. Though he testified that his primary function on this date was to provide security, there is little evidence that he actually made the scene more secure. Conversely, Respondent's inaction contributed to the conditions which allowed A.M. to escape from custody with Police Officer Jilling's handcuffs still on her wrist and placed other officers and members of the public in the vicinity in potential danger. For these reasons, no mitigation is warranted, and I recommend that Respondent forfeit twenty (20) vacation days.

Respectfully submitted,

Anne E. Stone

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Assistant Deputy Commissioner Trials

APPROVED

APR 14 2026
Jessie Jesi
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER SERGE JEAN
TAX REGISTRY NO. 950628
DISCIPLINARY CASE NO. C-034660

Respondent was appointed to the Department on July 6, 2011. On his three most recent annual performance evaluations, he received a rating of “Exceptional” for 2023, and was twice rated “Exceeds Expectations” for 2021 and 2022. He has received one (1) medal for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Anne E. Stone
Anne E. Stone
Assistant Deputy Commissioner Trials